

Stressor 2 - the sequence of instructions about the pay correction

WC/2024/227 · Shepherd v Workers' Compensation Regulator · internal working document, 22 August 2026 · not for service

Every entry below is recorded in Review Decision 69983 of 24 October 2024 at the pages cited, or is an admitted fact. The Respondent's own decision is the source. The question is not how much was unpaid. It is who was told to do what, and by whom.

Date	Direction	What the document records	Source
8 Apr 2024	Appellant → Line Manager	Requests a review of payment for 8 to 31 March 2024: the Saturday public holiday not paid, and the penalty rates for the Monday shift following a Sunday shift. Cites the Award, part 5 section 15 - a minimum ten-hour break unless there is mutual agreement on regular rosters.	RD p 21
9 Apr 2024	Line Manager → Appellant	An AVAC is submitted for the public holiday of 30 March 2024, to be processed in the next pay run. For the other dates she asks him to submit an enquiry through MyHR payroll enquiries so they can investigate his entitlements , the claims being older than three months, and notes that if payroll decided he was entitled, she would happily submit a validation of claims older than 3 months form . She asks him to raise concerns as soon as they arise so she could action them sooner.	RD p 21
24 Apr 2024	Appellant → Line Manager	He has been in touch with payroll, who advised him to notify the Line Manager that payments for public holidays not worked would need to be processed as overtime in the fortnightly pay cycle . He asks her to take the necessary action and provide a PRN. Records that it has been more than two weeks without any response or overtime payment .	RD p 21
1 May 2024	Line Manager → Appellant	The fatigue payment for 18 March 2024 will not be processed, on the 2020 agreement. As to the top-up and reduction of hours, an investigation is currently underway by payroll ; the system generates the adjustments automatically and she is unable to view them directly . Payroll is also still reviewing the public holidays not required and the overtime.	RD pp 21-22
3 May 2024	Payroll → Line Manager	Ms E Grant sets out precisely what is wrong, fortnight by fortnight: a 7-hour shift on 9 February instead of 8, topping up from the RDO balance; the same the following fortnight; the fortnight commencing 18 March carrying too many ordinary shifts, giving a wage reduction of 7.55 hours because one shift had to be overtime; overtime again in the fortnight commencing 1 April. She requests the Line Manager submit an AVAC to correct the shifts for each fortnight so he is paid correctly and the RDO balance amended.	RD p 22 · admitted, notice to admit facts ¶40
10 May 2024	Appellant → Payroll	He emails payroll raising his concern about the Line Manager and the outstanding payments.	RD p 22
13 May 2024	Payroll → Appellant	Payroll confirm they cannot see any issues have been corrected and instruct him to speak with his manager to correct the issues through the submission of an AVAC.	RD p 14
21 May 2024	Line Manager → Appellant	"I am waiting payroll confirmation... as soon as I do get that confirmation, I will submit an AVAC" - for the next pay run.	RD p 14 · notice to admit facts ¶46
28 May 2024	Line Manager	The AVAC is submitted. Twenty-five days after the request of 3 May 2024.	Admitted, response to the notice to admit facts ¶38

The shape of it

On **9 April** she directed him to payroll. On **24 April** payroll directed him back to her, because the action required - processing the payments through the pay cycle - was hers. On **1 May** she told him payroll was investigating and that she could not see the adjustments. On **3 May** payroll told her, in detail and fortnight by fortnight, exactly what to submit. On **10 May** he went to payroll again. On **13 May** payroll told him nothing had been corrected and that he had to go to his manager. On **21 May** she told him she was waiting on payroll - **eighteen days after payroll had told her what to do**. She submitted it on **28 May**.

Two things follow, and neither depends on the amount.

First, the AVAC was never his to submit. Payroll said so on 13 May in terms. The 3 May request was addressed to her, not to him. Directing him to MyHR and to payroll directed him to a process he had no authority to complete.

Second, the reason given for the delay was overtaken by a document she held. On 1 May and again on 21 May the delay was attributed to payroll. From 3 May payroll had asked her to act. The chronology says this on its own; it does not need to be characterised.

The employer's own system record

Metro South produced, as Item 11 of the notice of non-party disclosure, the myHR submissions report for 1 February to 31 May 2024 - the "Search Results (7)" screen. Read from the page (the file has no text layer). AVAC is an *Attendance Variation and Allowance Claim*.

Process	Type	Submitted	Effective	Status	Processed	Initiator
15325947	AVAC	06.02.2024	22.01.2024	Completed	08.02.2024	Donovan-Taylor, Chloe
15480560	Smart Leave Request	20.02.2024	20.02.2024	Completed	01.03.2024	Shepherd, Cory
15848692	Smart Leave Request	27.03.2024	25.03.2024	Completed	27.03.2024	Donovan-Taylor, Chloe
15849573	AVAC	27.03.2024	18.03.2024	Completed	01.04.2024	Donovan-Taylor, Chloe
15969838	AVAC	09.04.2024	30.03.2024	Completed	11.04.2024	Donovan-Taylor, Chloe
16328886	AVAC	15.05.2024	07.05.2024	Completed	16.05.2024	Donovan-Taylor, Chloe
16450619	AVAC	28.05.2024	30.03.2024	Part Completed	30.05.2024	Donovan-Taylor, Chloe

Every AVAC in the period was initiated by the Line Manager. Five of them. The only thing the Appellant initiated was a leave request. An AVAC is not a form he could submit, and the record shows he never did. That is the answer to any suggestion that the pay correction was his to pursue with payroll.

The machinery was never slow. Processing ran two days, five days, two days, one day and two days. The delay of 3 to 28 May 2024 was in the submitting, not the processing.

An AVAC was submitted on 15 May 2024 and completed on 16 May 2024 - process 16328886, one day. On **21 May 2024** the Appellant was told that an AVAC would be submitted once payroll confirmation was received. The record shows an AVAC submitted and completed in the week before that email. The two sit side by side without needing to be characterised, and the question they raise can be put in one line.

The correction AVAC is the only one not marked Completed. Process 16450619, submitted 28 May 2024 with an effective date of 30 March 2024, is recorded as **"Part Completed"**. Every other AVAC in the period reads "Completed".

■ **Do not assert what "Part Completed" means.** It is a myHR status and its meaning is not established anywhere on this record. It may mean the claim was processed in part only; it may be routine. It is a question, and a good one, for the employer or for Ms Grant - not a conclusion. Establish the meaning before it is relied on anywhere.

Note also that **PRN 15397775 and PRN 15605601 do not appear** in this report at all. Those are the two references the AVAC payroll export was sought for at Item 16 of the notice of non-party disclosure.

How this is run

Section 32(5)(a) asks whether management action was reasonable and **taken in a reasonable way**. The second half is the one this goes to. The Review Unit found the pay factor substantiated but reasonable; that finding was made on the same pages set out above, so the material is already before the Commission and nothing new has to be proved to open it.

Run it as the routing, not the arrears. The quantum is not in issue, is not admitted, and the comparator figure pleaded at Stressor 2(a) should not be run at all - it depends on a document not held, and it asserts too few rostered hours while the fatigue case is that the recovery interval was too short.

Words that must not be used

The Review Decision at page 23 records the Appellant's own account in the words *"an act of control and abuse"*, *"forcing you to fight"* and *"falsely"*. Those are already on the record and cannot be unsaid, but they are not to be repeated or adopted. They go to the worker's perception of management action, which is section 32(5)(b) territory and is not pleaded against him; and an allegation of that kind raises his own standard of persuasion. The dated sequence carries the point without any of them.

What would strengthen it

The four emails themselves. The sequence above is recited in the Review Decision. The underlying emails of 8, 9 and 24 April, 1, 3, 10, 13 and 21 May 2024 are better evidence than a recital of them. The 3 May email of Ms Grant is the single most useful: it is the instruction, it is addressed to the Line Manager, and it is admitted. Check the correspondence packs and the Respondent's disclosure of 11 June 2026 before assuming any of them is absent.

Ms E Grant. Payroll's own officer wrote the 3 May instruction and is the person who can say what was asked of the Line Manager and what would have happened had it been done. Consider her for the witness list due 4.00 pm on 9 September 2026.